

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on January 23, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On January 23, 2024, a complaint was filed with this Agency by Ms. A.A.A. (hereinafter, the complainant) against the EDUCATION DEPARTMENT OF THE CASTILLA Y LEÓN REGIONAL GOVERNMENT (hereinafter, the respondent) for not having duly attended to the right of access to her minor daughter's data.

On December 22, 2023, the complainant sent a letter to the Director of CEIP Camino del Norte, in León, requesting:

"Copy, in digital format, of all exams and other documents used for her evaluation, where her daughter's answers and the corrections made by the teaching staff are recorded, during the first term of the 2023-2024 academic year in the subjects of: Language, Mathematics, Science, English, French, Music, and Social Studies, including the initial tests of these subjects (if any). That this documentation be sent electronically (...)"

The complainant states "3rd.- That the Education Department of Castilla y León (through the various educational centers where her daughter has been enrolled) has repeatedly refused to provide copies of the personal data requested by the interested party, unjustifiably delaying the delivery of the same, forcing her to file numerous complaints with the Transparency Commission of Castilla y León (CT) and with the AEPD, entities that have ultimately upheld the interested party's claims, estimating her requests and requiring the Education Department of CyL to provide the copy of the requested personal data, as can be verified in files TD/00140/2021; E/09643/2019; Resolution R/00584/2022, and in Resolution 119/2021, of June 18, from the Transparency Commission of Castilla y León, for example."

SECOND: On February 2, 2024, the complainant submitted a new letter to this Agency providing a copy of the response received from the respondent, in which they indicate:

"That the request made is considered exceptional in that usually, such requests from families do not occur. It is usual for them to come to the center and for the teaching staff to show them in person, providing the appropriate feedback.

That the requested information is available at the center's Secretariat, where it will be delivered to you, upon signing the receipt that certifies the collection of said documents."

THIRD: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record in this Agency that the respondent has submitted any response.

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on April 23, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any allegations they deemed appropriate within ten working days, without submitting any allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

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Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure set forth in Article 65.4 of the LOPDGDD, prior to the admission of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response.

The outcome of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on April 23, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim submitted was admitted for processing. This admission to processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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It is also taken into account what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about data transfers.

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personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not negatively affect the rights and freedoms of others.

V

Conclusion

In the present case, it has been established that, on December 22, 2023, the claimant requested from the respondent "A copy, in digital format, of all the exams and other documents used for her evaluation, which include her daughter's answers and the corrections made by the teaching staff, during the first term of the academic year 2023-2024 in the subjects of: Language, Mathematics, Science, English, French, Music, and Social Studies, including the initial tests of these subjects (if any). That this documentation be sent electronically (...)", and that, on January 31, 2024, the respondent replied indicating that this was not the usual way of such requests, and "(...) that the requested information is available to the claimant in the school's secretary's office, where it will be

delivered upon signing the receipt that certifies the collection of said documents.”

Before analyzing the present claim, it should be noted that this Agency has already resolved Procedure of Rights PD/00263/2023, initiated as a result of a similar request from the claimant against the respondent. In that resolution, it was stated that:

“During the processing of this procedure, the respondent entity, just as it had previously done with the claimant, insists before this Agency that the personal data related to the exercise of the right of access requested is available to the claimant in the requested locations.

The debate therefore centers on the means of delivery of the copy of the personal data subject to the right, since while the claimant asserts that she has the right to have it sent by email, the respondent indicates that the copy of the personal data is available to the claimant, for her to choose the most convenient location in the secretary’s office of the educational center where her daughter studies.

Article 12.3 of the GDPR states that “3. The data controller shall provide the data subject with information regarding its actions based on a request in accordance with Articles 15 to 22, and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided otherwise.” (the underlining is ours)

Completing the above, Article 15.3 of the GDPR establishes regarding the modality of the copy that “3. The data controller shall provide a copy of the data

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personal data subject to processing. The controller may charge a reasonable fee based on administrative costs for any additional copy requested by the data subject. When the data subject submits the request electronically, and unless they request otherwise, the information will be provided in a commonly used electronic format.” (the underlining is ours)

In this regard, the Guidelines 01/2022 on the rights of data subjects - Right of access, version 1.0, adopted on January 18, 2022, state that,

“32. In the case of requests made electronically, the information shall be provided by electronic means whenever possible and unless the data subject requests otherwise (see Article 12(3)). Article 15, paragraph 3, third sentence, complements this requirement in the context of access requests, indicating that the data controller is also obliged to provide the response in a commonly used electronic format, unless the data subject requests otherwise. Article 15, paragraph 3, presupposes that, for data controllers who can receive electronic requests, it will be possible to provide the response to the request in a commonly used electronic format (for example, in PDF). This provision refers to all the information that must be provided in accordance with Article 15, paragraphs 1 and 2. Therefore, if the data subject submits the access request electronically, all information must be provided in a commonly used electronic format. Format issues are developed in section 5. The data controller must, as always, apply appropriate security measures, particularly when it concerns a special category of personal data (see point 2.3.4).” (the underlining is ours)

The regulation links the provision of a copy of personal data by electronic means to cases where the data subject has exercised their right of access in this manner, unless they request otherwise, and all this without prejudice to the fact that the delivery in such a format may also be limited to cases where this is possible, especially when security measures need to be applied, particularly if special categories of personal data are involved.

Each data controller will have to determine, regarding the modality of the copy of personal data, the means through which they will facilitate the right of access, taking into account the characteristics of their own organization, the type of personal data affected, the necessary security measures, or the circumstances of the data subject, among others. And this is provided that it does not impose an

excessive burden or an impediment for the data subject (frustrating the right itself).

This means that, in principle, the data controller cannot be required to provide the copy of personal data through electronic means.

In the case at hand, the claimant requested their right of access through a written submission made in person at the registry of an official body, specifically the Ministry of Finance and Public Function, and addressed to the Provincial Directorate of Education of León. The exercise of access also referred to personal data related to psychopedagogical tests and assessments.

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Furthermore, it must be taken into account that the copy of the personal data includes health data of the claimant, which requires the adoption of specific security measures.

And that the means provided by the respondent to deliver the copy of the personal data have not posed an impediment for the claimant.

Considering that the right of access has been available to the claimant since their request, this claim is deemed inadmissible.”

This resolution was upheld with the dismissal of the appeal for reconsideration filed by the claimant, in which it is stated, among other issues, that

“1.- Regarding the first of your assertions, it should be noted that, although it is true that it was indicated that the means of presenting the right of access was in person through registration, resulting in it being submitted electronically, it is also true that this reason does not undermine the arguments set forth in the resolution now being appealed, which determine the dismissal of the claims presented before this Agency. This is because, even if both requests had been made through the electronic registry, it is emphasized that the response by the same means, that is, through electronic submission, is not an indispensable condition to understand the request as attended, especially in cases such as the present one where the respondent administration has indicated that it does not possess the necessary means for this. As stated in the documents submitted on November 30, 2023, and February 14, 2024, the respondent asserts that “the educational centers of that Autonomous Community do not currently have electronic registration and/or notification systems that ensure receipt by the recipient, as well as the safeguarding of the privacy and security conditions established by the National Security Scheme.” (The underlining is ours)

(...)

4.- Regarding the reiterated allegations concerning the means and scope of the right of access, we proceed to reproduce what has already been stated in the resolution of the rights procedure:

“...During the processing of this procedure, the respondent entity, just as it had previously done with the claimant, insists before this Agency that the personal data related to the exercise of the requested right of access is available to the claimant at the requested locations.

The debate, therefore, centers on the means of delivering the copy of the personal data subject to the right, since while the claimant asserts that they have the right to have it sent to them by email, the respondent indicates that the copy of the personal data is available to the claimant, for them to choose the location that is most convenient for them at the secretariat of the educational center where their daughter studies.

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Article 12.3 of the GDPR states that “3. The data controller shall provide the data subject with information regarding its actions based on a request in accordance with Articles 15 to 22, and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the

data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided otherwise.” (the underlining is ours)

Completing the above, Article 15.3 of the GDPR establishes regarding the copy modality that “3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject submits the request by electronic means, and unless they request that it be provided otherwise, the information shall be provided in a commonly used electronic format.” (the underlining is ours)

In this regard, the Guidelines 01/2022 on the rights of data subjects - Right of access, version 1.0, adopted on January 18, 2022, state that, “32. In the case of requests made by electronic means, the information shall be provided by electronic means whenever possible and unless the data subject requests otherwise (see Art. 12(3)). Article 15, paragraph 3, third sentence, complements this requirement in the context of access requests, indicating that the data controller is also obliged to provide the response in a commonly used electronic format, unless the data subject requests otherwise. Article 15, paragraph 3, presupposes that, for data controllers who may receive electronic requests, it will be possible to provide the response to the request in a commonly used electronic format (for example, in PDF). This provision refers to all the information that must be provided in accordance with Article 15, paragraphs 1 and 2. Therefore, if the data subject submits the access request by electronic means, all information must be provided in a commonly used electronic format. Format issues are developed in Section 5. The data controller must, as always, apply appropriate security measures, particularly when dealing with a special category of personal data (see point 2.3.4).” (the underlining is ours)

The regulation links the delivery of copies of personal data by electronic means to cases where the data subject has exercised their right of access in this manner, unless they request otherwise, and all this without prejudice to the fact that the delivery in such cases may also be limited to situations where this is possible, especially when security measures need to be applied, particularly if special categories of personal data are involved.

Each data controller will have to determine, regarding the modality of the copy of personal data, the means through which they will facilitate the right of access, taking into account the characteristics of their own organization, the type of...

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the affected personal data, to the necessary security measures or the circumstances of the data subject, among others. And this is always provided that it does not impose an excessive burden or an impediment for the data subject (frustrating the right itself).

This means that, in principle, the data controller cannot be required to provide a copy of the personal data through electronic means.”

In the present case, as was the case in the previously mentioned instances, the responding party has facilitated the exercise of the right to access personal data to the complaining party. This is evident from the communication made whereby it was informed that the requested information was available at the center's secretariat, where the required documents would be handed over upon signing a receipt that would reliably certify their collection. Likewise, it has been made clear that the responding party does not currently have electronic registration and/or notification systems that, in addition to ensuring adequate receipt by the recipient, can guarantee the appropriate conditions of privacy and security established by current regulations.

However, the response issued by the responding party occurred after the legally established period of one month, given that the exercise of the right was presented on December 22, 2023, and that response was issued on January 31, 2024.

Therefore, taking into account the aforementioned, it is appropriate to uphold, for formal reasons, the complaint that led to this procedure, as it has been established that the responding party has made the requested access available to the complaining party belatedly.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Ms. A.A.A. against the EDUCATION DEPARTMENT OF THE CASTILLA Y LEÓN REGIONAL GOVERNMENT with NIF B.B.B. However, it is not appropriate to issue a new certification by the responding party, as the response was issued belatedly, and no additional actions are required from the data controller.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to the EDUCATION DEPARTMENT OF THE CASTILLA Y LEÓN REGIONAL GOVERNMENT.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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